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ASSOCIATION OF APARTMENT OWNERS
OF MARINE SURF WAIKIKI, INC.,
BY ITS BOARD OF DIRECTORS

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IN THE DISTRICT COURT OF THE FIRST CIRCUIT
HONOLULU DIVISION
STATE OF HAWAII

ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawaii nonprofit corporation, by its Board of Directors, Plaintiffs, vs. NIKODEM PIKOR, Defendant.	CIVIL NO. 1RC191003776 [Assumpsit] **[PROPOSED] ORDER DENYING DEFENDANT / COUNTERCLAIM PLAINTFF NIKODEM PIKOR'S MOTION TO EXTEND TIME TO FILE APPEAL FILED AUGUST 24, 2026 [DKT. 442]**
NIKODEM PIKOR, Counterclaim Plaintiff, vs. ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawaii nonprofit corporation, by its Board of Directors, Counterclaim Defendant.	HEARING: Date: October 5, 2026 Time: 8:30 a.m. Judge: Honorable Timothy E. Ho

NIKODEM PIKOR,

Third-Party Plaintiff,

vs.

THYSSENKRUPP ELEVATOR CORPORATION, a foreign profit corporation,

Third-Party Defendant.

[PROPOSED] ORDER DENYING DEFENDANT / COUNTERCLAIM PLAINTFF NIKODEM PIKOR'S MOTION TO EXTEND TIME TO FILE APPEAL FILED AUGUST 24, 2026 [DKT. 442]

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IN THE DISTRICT COURT OF THE FIRST CIRCUIT
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NIKODEM PIKOR, Counterclaim Plaintiff, vs. ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawaii nonprofit corporation, by its Board of Directors, Counterclaim Defendant.	

NIKODEM PIKOR, Third-Party Plaintiff, vs. THYSSENKRUPP ELEVATOR CORPORATION, a foreign profit corporation, Third-Party Defendant.	)

ORDER DENYING DEFENDANT / COUNTERCLAIM PLAINTFF NIKODEM PIKOR'S MOTION TO EXTEND TIME TO FILE APPEAL FILED AUGUST 24, 2026 [DKT. 442]

On August 24, 2026 [Dkt. 442], Defendant/Counterclaim Plaintiff NIKODEM PIKOR filed his Motion to Extend Time to File Appeal ("**Motion**"); on September 9, 2026, the Association of Apartment Owners of Marine Surf Waikiki, Inc. ("**the AOAO**") as Counterclaim Defendant opposed the Motion [Dkt. 453]; and on September 9, 2026, the AOAO as Plaintiff opposed the Motion, which came on for hearing via Zoom on October 5, 2026, at 8:30 a.m. before the Honorable Timothy E. Ho; James R. Ferguson, Esq. appeared on behalf of Counterclaim Defendant AOAO, Yun W. Kim, Esq. appeared on behalf of Plaintiff AOAO; and Amanda L. Dutcher, Esq. appeared and was excused and discharged as counsel by the Court from appearing on behalf of Defendant/Counterclaim Plaintiff Nikodem Pikor ("**Pikor**"), who was present and argued *pro se* at the hearing; and

The Court having heard the arguments of counsel and Pikor, having reviewed and considered the memoranda and declarations in support and in opposition, and being fully advised in the premises, finds that the Motion to Extend Time to File Appeal was untimely; and therefore,

IT IS HEREBY ORDERED, ADJUDGED AND DECREED that Counterclaim Defendant/Counterclaim Plaintiff NIKODEM PIKOR'S Motion to Extend Time to File Appeal filed August 24, 2026 [Dkt. 442] is hereby DENIED.

DATED: Honolulu, Hawaii, _____.

_____
JUDGE OF THE ABOVE-ENTITLED COURT

APPROVED AS TO FORM:

_____	/s/_____
Defendant/Counterclaim Plaintiff NIKODEM PIKOR	TERRANCE M. REVERE, ESQ. AMANDA L. DUTCHER, ESQ. Former/Withdrawn Attorneys for Defendant/Counterclaim Plaintiff NIKODEM PIKOR
*/s/ James R. Ferguson*_____	*/s/ Yun W. Kim*_____
JAMES R. FERGUSON JODIE D. ROECA Attorneys for Counterclaim Defendant ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., BY ITS BOARD OF DIRECTORS	GLENN S. HORIO YUN W. KIM Attorneys for Plaintiff Association of Apartment Owners of Marine Surf Waikiki, Inc., by its Board of Directors ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., BY ITS BOARD OF DIRECTORS

ORDER DENYING DEFENDANT/COUNTERCLAIM PLAINTFF NIKODEM PIKOR'S MOTION TO EXTEND TIME TO FILE APPEAL FILED AUGUST 24, 2026 [DKT. 442]*; AOAO Marine Surf Waikiki, Inc. v. Nikodem Pikor, et al*., Civ. No. 1RC191003776, Honolulu Dist. Court of the First Circuit, State of HI